

2. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR PROTECTIVE ORDER**
FILED BY: SEVILLA, GIN IVY
TENTATIVE RULING:

Defendant Gin Ivy Sevilla (“Defendant”) filed a Motion for Protective Order on October 22, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on March 9, 2026. Notice of the motion was duly given. The motion is opposed.

Background

The Motion for Protective Order sought to postpone Defendant’s “deposition and the scheduled mediation currently set for October 20, 2025.” Motion for Protective Order, p. 1. This was stated to be “due to ongoing mental health and anxiety issues that currently impair her ability to participate meaningfully in the proceedings at this time.”

Opposition papers were filed on February 24, 2026, including a Request for Judicial Notice. The Request for Judicial Notice is DENIED because the truth of substantive matters contained in a filed declaration are not subject to judicial notice. The Court may, in its discretion, take judicial notice of court records. Evid. Code, § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of each document in a court file, they may not take judicial notice of the truth of facts in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2026 Edition) § 7:12. The Court, however, may simply consider the referenced document as a filed declaration in this case. The Court may consider filed declarations as evidence in connection with law and motion proceedings. See Weil & Brown, *et al., Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 9:46.

A reply and related papers were filed on February 27, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420. Any such motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).

The moving party makes reference to receiving a notice from the opposing party that “my deposition and mediation are set for October 20, 2025.” See Declaration of Gin Ivy Sevilla filed October 22, 2025, ¶13.

It is not clear to the Court how or why a deposition and mediation would set for the same date. No copy of the referenced notice was attached. The Opposition attaches the notice setting subject deposition for October 20, 2025. See Declaration of Kenneth R. Van Vleck filed February 24, 2026 (“Van Vleck Decl.”), **Exhibit 3**.

In any event, the date has passed. The period over which Defendant anticipated to have an issue with moving forward with the proceedings has also passed. Defendant only sought to continue the proceedings to “early January 2026.”

Accordingly, the relief sought is moot. For that reason, the motion is denied. Even if not moot, the Court would deny the motion for the further reasons discussed below.

Notwithstanding the determination that the relief sought is moot, the Court must determine whether sanctions are appropriate as against Defendant. See Code Civ. Proc. § 2025.420(h) (“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

First, the Court has considered and does not find that there was substantial justification for the motion in the first place. The vague and unsupported grounds stated in Defendant’s supporting declaration did not demonstrate good cause, especially given the history of plaintiffs’ efforts to confer to accommodate Defendant’s schedule. See Van Vleck Decl., ¶12 *et seq.*

Second, Defendant advised of her motion and proceeded with the motion without engaging in a good faith effort to meet and confer, as she was required to do. *Id.*

Defendant’s failure to engage in a good faith effort to meet and confer constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. The Court finds that Defendant did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust. The Court has considered, in mitigation, Defendant’s self-represented status at the time.

The Reply asserts that “Ms. Sevilla had more than substantial justification: a pending criminal prosecution on the same operative facts...” Reply, p. 7. Defendant’s moving papers did not premise the motion on any pending criminal prosecution. Defendant’s moving papers, including the supporting declaration, mention nothing about such an issue. Nor did Defendant meet and confer with the opposing party on the basis of such a contention.

The Court declines to consider the new evidence contained in the late tendered further declaration by Defendant filed February 27, 2026. See Weil & Brown, §§ 9:449 and 106.1.

The Court does not reach the counter request to order Defendant to appear for deposition. If the deposition is re-noticed and Defendant fails to appear, appropriate relief may be sought at that time. Or, if Plaintiffs believe there are grounds to do so, Plaintiffs may file and notice a motion to compel

attendance at deposition.

The Court also notes that counsel has since substituted in for Defendant and the Court encourages the parties to meet and confer regarding the scheduling of the deposition without further delay. The Court will further address the status of the proceedings at the scheduled March 20, 2026 hearing date.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. Defendant shall pay monetary sanctions to plaintiffs in the amount of **\$1,200.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by plaintiffs as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the declarations of the parties and their attorneys. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. Also set for hearing concurrently is a motion to strike the punitive damages allegations and prayer for punitive damages. For the reasons set forth below, the hearing on the demurrer and motion to strike shall be **CONTINUED to 9:00 a.m. on April 13, 2026** for the parties to conduct the statutory meet and confer, as set forth below. The parties shall conduct a Code-compliant meet and confer **by March 23, 2026**, and counsel for defendant shall file a supplemental declaration **by April 1, 2026** attesting to the completion of the meet and confer.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the filing deadline before filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike. (Code Civ. Proc. § 435.5(a).)

In support of the demurrer and motion to strike, defendant filed a declaration of counsel, Mr. Leary, which does not attest that the parties met and conferred in any manner prior to defendant filing the demurrer and motion to strike. The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).